

Subject: LAW

Production of Courseware

 - Content for Post Graduate Courses



Paper : ADVANCED CONSTITUTIONAL LAW

Module : FUNDAMENTAL DUTIES UNDER INDIAN CONSTITUTION



Component - I - Personal Details

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Component - I (B) Description of Module

Subject Name	Law
Paper Name	Constitutional Law
Module/ Name/Title	Fundamental Duties under Indian Constitution
Module Id	8
Pre-requisites	Basic understanding of Indian Constitution
Objectives	1) To understand the need of fundamental duties. 2) To study the importance of these duties 3) To study various provisions and judicial pronouncements regarding the enforcement of fundamental duties.
Keywords	Constitution of India, Fundamental Duties, Article 51-A.



Component - II

Module 8 : Fundamental Duties under Indian Constitution

Structure:

1. Introduction
2. Learning objectives
3. Reasons for not enacting Fundamental Duties in the Constitution as originally framed
4. Fundamental Duties
5. Need and Importance of Fundamental Duties
6. Enforceability of fundamental duties
7. Legal provisions for the enforcement of fundamental duties
8. Drawbacks in fundamental duties
9. Role of Judiciary
10. Recommendations of the National Commission on the Review of the Constitution (NCRC)
11. Suggestions
12. Conclusion

(1) Introduction

Since time immemorial the emphasis in Indian society in accordance with the dictates of the ancient scriptures has been on the individual's *kartavya*, that is, performance of one's duties towards society, the country and especially towards one's parents. The Gita and the Ramayana enjoin people to perform their duties without caring for their rights (or fruits).¹ Mahatma Gandhi rightly said that:

The true source of right is duty. If we all discharge our duties, rights will not be far to seek. Rights accrue automatically to him who performs his duties. In fact, right to perform one's duties is the only right worth living for and dying for. It covers all legitimate rights.²

The law and its prohibitive processes, apprise man of his rights and duties as a unit of the society.³ Right is an interest recognized and protected by a rule or justice⁴ whereas

¹ J.N. Pandey, *Constitutional Law of India*, 431-432 (2011).

² Ajit K. Dasgupta, *Gandhi's Economic Thought*, 46 (1996).

³ G.C. Subbarao, *Jurisprudence*, 161 (1999).



a duty is an obligatory act.⁵ Rights and duties are co-relative and therefore no right can exist without a co-relative duty.⁶ The Constitution of India guarantees Fundamental Rights for the people of India⁷ under Part III (Article 12 to 35) of the Constitution. The framers followed the American model in adopting and incorporating these fundamental rights in the Constitution. These are certain basic, natural and inalienable rights.⁸ These have been declared essential rights in order that ‘human liberty may be preserved, human personality developed and an effective social and democratic life promoted’.⁹

Part IV (Article 36 to 51) titled “Directive Principles of State Policy” contains the directives and duties for the State. The inspiration for including in the Constitution such Principles is drawn from the Constitution of Ireland, 1937.¹⁰ This part sets forth the ideals and objectives to be achieved by the State for setting up in India a social welfare state as distinguished from a mere police state, which aims at social welfare and the common good and to secure to all its citizens justice- social and economic.¹¹

But the framers of the Constitution did not declare any fundamental duties of the citizens. However, Part IV-A (Article 51-A), which contains the Fundamental Duties of the Citizens of India, was added in the Constitution by the Constitution (42nd Amendment) Act, 1976. These duties have been added to implement the recommendations of the Swaran Singh Committee reported in 1976.¹² None of the Constitutions of the Western countries specifically provides the duties of the citizens. On the other hand, the Constitutions of socialist countries lay great emphasis on the duties.¹³

(2) Learning Objective

This module deals with the concept of fundamental duties incorporated in the Constitution of India. You will learn the reasons for not making these duties a part of Constitution as originally framed. The need and significance of fundamental duties has been discussed along with various legal provisions for the enforcement of fundamental duties including various judicial pronouncements. In addition to this, various drawbacks in the fundamental duties have been pointed out together with a few recommendations and suggestions.

⁴N.V. Paranjape, *Studies in Jurisprudence and Legal Theory*, 243 (2004).

⁵*Id.*, at 241.

⁶*Id.*, at 248.

⁷Narender Kumar, *Constitutional Law of India*, 60 (2004).

⁸*Id.* at 59.

⁹M.P. Jain, *Indian Constitutional Law*, 457 (1987).

¹⁰B. Shiva Rao, *Framing of India's Constitution – A Study*, 320 (1968); *Kesavananda Bharti v. State of Kerala* AIR 1973 SC 1461.

¹¹*P.B.K.M. Samity v. State of W.B.* AIR 1996 SC 2426; *Chandra Bhaven v. State of Mysore* AIR 1970 SC 2042.

¹²*Supra* note 7 at 408.

¹³*Ibid.* For example, in Britain, Canada and Australia, the rights and duties of citizens are governed largely by Common law and judicial decisions. The French Constitution makes only a passing reference to duties of citizens. The American Constitution provides only for fundamental rights and does not refer to duties of citizens. Whereas the Yugoslavian Constitution and Soviet Constitution contain provisions of fundamental duties. *Supra* note 1.



(3) Reasons for not Enacting Fundamental Duties in the Constitution

The framers of the Indian Constitution did not feel the need to enact the fundamental duties in the Constitution as given to us, for the following reasons¹⁴:

(3.1) Firstly, the framers of the Indian Constitution were such visionaries as had practiced values in life, discharging their societal and national obligations and had followed noble ideals which had inspired our national struggle for freedom and the need to defend the country, promote harmony, secularism and preserve the rich heritage of the composite Indian culture. To the framers of the Constitution, these were basic and inherent values, which were being practiced by each and everyone. These were first nurtured in the home traditionally and were subsequently supplemented by education in schools and colleges. These were integral part of the way of life in India and it was taken for granted that aberrations in the practice of these will not be acceptable to the society. As such no need was felt to incorporate the Fundamental Duties specifically in the Constitution.

(3.2) Secondly, the duties were spelt out by the Preamble to the Constitution, which contains the ideals and aspirations of the people of India and the dedication of Constitution for fulfilling such ideals and aspirations. We have solemnly resolved to secure to all the citizens of India justice, liberty, equality and fraternity. Whatever is needed to achieve these goals, is our obvious duty to perform – is a dictate of the Preamble.

(3.3) Thirdly, all the rights enshrined in Part III on Fundamental Rights have inbuilt obligations therein. The need is to read them so as to spell out and understand the duties flowing therefrom.

However, with the lapse of time, degradation of values, particularly values in public life became blatantly evident and the nation felt the need to amend the Constitution and incorporate these values specifically as the Fundamental Duties of every citizens.¹⁵

As already stated, those who propagated the inclusion of these duties in the Constitution took a leaf from the *Dharamshastras*, which stress upon the duties rather than the rights of the people. *Geeta* aptly declared: “Your duty is your Right”. They thought that fundamental duties flow from the fundamental rights and the idea that it was the citizen’s duties on which were based fundamental freedoms; and fundamental duties would constitute the corner-stone of the arch of the established socio-political order. They said that the citizens should accept certain responsibilities towards the state, the government, constitutional institutions and fellow citizens.¹⁶

¹⁴ The Consultation Paper on ‘Effectuation of Fundamental Duties of Citizens’, available at <http://lawmin.nic.in/ncrwc/finalreport/v2b1-7.htm> (Accessed on 14.2.10).

¹⁵ *Ibid.*

¹⁶ Santosh Kumar Pathak, “Fundamental Duties: Their Importance”, AIR 2005 (Raj.) Journal 361-366 at 361.



(4) Fundamental Duties

Part IV-A (Article 51-A) of the Constitution provides the following fundamental duties of every citizen:

- a) To abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem;
- (b) To cherish and follow the noble ideals which inspired our national struggle for freedom;
- (c) To uphold and protect the sovereignty, unity and integrity of India;
- (d) To defend the country and render national service when called upon to do so;
- (e) To promote harmony and the spirit of common brotherhood amongst all the people of India transcending religious, linguistic and regional or sectional diversities; to renounce practices derogatory to the dignity of women;
- (f) To value and preserve the rich heritage of our composite culture;
- (g) To protect and improve the natural environment including forests, lakes, rivers and wild life, and to have compassion for living creatures;
- (h) To develop the scientific temper, humanism and the spirit of inquiry and reform;
- (i) To safeguard public property and to abjure violence;
- (j) To strive towards excellence in all spheres of individual and collective activity so that the nation constantly rises to higher levels of endeavour and achievement;
- (k) who is a parent or guardian to provide opportunities for education to his child or as the case may be ward between the age of six and fourteen years.¹⁷

With the inclusion of these fundamental duties, our Constitution has been brought in line with the Universal Declaration of Human Rights (UDHR, 1948)¹⁸, International Covenant on Civil and Political Rights (ICCPR, 1966)¹⁹ and also the Constitutions of U.S.S.R.²⁰, China²¹, Sri Lanka²².

(5) Need and Importance of Fundamental Duties

5.1 Fundamental Duties as enshrined in the Constitution of India have great moral values and may be termed as moral precepts or the expected behavioural patterns of the citizens of India towards the nation. Fundamental Duties of citizens serve a useful purpose. In particular, no democratic polity can ever succeed where the citizens are not willing to be active participants in the

¹⁷Inserted by the Constitution (86th Amendment) Act, 2002.

¹⁸Article 29 (1) of UDHR provides: "Everyone has duties to the community in which alone the free and full development of his personality is possible."

¹⁹Preamble to the ICCPR inter alia provides: "Realizing that the individual, having duties to other individuals and to the community to which he belongs, is under a responsibility to strive for the promotion and observance of the rights recognized in the present Covenant."

²⁰Articles 59 to 69 of the Constitution of USSR, 1977 under chapter 7 provides duties of the citizens of USSR.

²¹Chapter 2 of the Constitution of Republic of China, 1982 (Sections 42, 46, 49, 52 to 59).

²²Chapter VI of the Constitution of Sri Lanka, 1997.



process of governance by assuming responsibilities and discharging citizenship duties and coming forward to give their best to the country.

5.2 These duties are intended to create psychological consciousness among the citizens²³ and are intended to serve as a constant reminder to every citizen that while the Constitution specifically conferred upon them certain fundamental rights, it also requires citizens to observe certain basic norms of democratic conduct and democratic behaviour.²⁴

5.3 These duties establish and strengthen the democratic balance. These read like a poem, crossing all barriers of politics. They are beacon lights of a citizen, guiding him in his functions.²⁵

5.4 Moreover, the courts can take help of these duties in order to interpret the provisions contained in Part III and IV of the Constitution. Supreme Court of India has emphasized that Fundamental Rights are not to be read in isolation. They have to be read along with the Chapter IV and IV-A of the Constitution.²⁶

Chapter IV-A becomes an essential feature or basic structure of the Constitution of India and hence Parliament has no power to amend the Constitution with a view to delete it.²⁷

(6) Enforceability of Fundamental Duties

It is true that there is no legal sanction provided for violation or non-performance of Fundamental Duties. There is neither specific provision for enforceability nor any specific prohibition. However, Fundamental Duties have an inherent element of compulsion regarding compliance. Out of the ten clauses in article 51A, five are positive duties and the other five are negative duties. Clauses (b), (d), (f), (h) and (j) require the citizens to perform these Fundamental Duties actively.²⁸

As already stated, rights and Duties are co-existent and co-relative. This means right in A implies duty in B. Duty is an inalienable part of right. By the inclusion of a chapter on Fundamental duties, it is the obligation of every citizen to abide by them. Failure on the part of any citizen to perform fundamental duty would imply violation of corresponding right in another person. Therefore, it becomes the duty of the judiciary to enforce those 'implied rights' like other constitutional rights.²⁹

(7) Legal Provisions for the Enforcement of Fundamental Duties

Following³⁰ are some of the legal provisions already available in regard to enforcement of Fundamental Duties:

²³Supra note 7 at 408.

²⁴J.N. Pandey, *Constitutional Law of India*, 377 (2003).

²⁵V.D. Mahajan, *Constitutional Law of India*, 386 (1991).

²⁶*Javedv. State of Haryana* AIR 2003 SC 3057; *Air India v. NargeshMeerza* AIR 1981 SC 1829.

²⁷Supra note 16 at 363.

²⁸Supra note 14.

²⁹Supra note 16 at 363.

³⁰Supra note 14.



7.1 In order to ensure that no disrespect is shown to the National Flag, Constitution of India and the National anthem, the Prevention of Insults to National Honour Act, 1971 was enacted.

7.2 The Emblems and Names (Prevention of Improper Use) Act 1950 was enacted soon after independence, *inter alia*, to prevent improper use of the National Flag and the National Anthem.

7.3 In order to ensure that the correct usage regarding the display of the National

Flag is well understood, the instructions issued from time to time on the subject have been embodied in Flag Code of India, which has been made available to all the State Governments, and Union territory Administration (UTs).

7.4 There are a number of provisions in the existing criminal laws to ensure that the activities which encourage enmity between different groups of people on grounds of religion, race, place of birth, residence, language, etc. are adequately punished. Writings, speeches, gestures, activities, exercise, drills, etc. aimed at creating a feeling of insecurity or ill-will among the members of other communities, etc. have been prohibited under Section 153A of the Indian Penal Code (IPC).

7.5 Imputations and assertions prejudicial to the national integration constitute a punishable offence under Section 153 B of the IPC.

7.6 A Communal organization can be declared unlawful association under the provisions of Unlawful Activities (Prevention) Act 1967.

- Offences related to religion are covered in Sections 295-298 of the IPC (Chapter XV).
- Provisions of the Protection of Civil Rights Act, 1955 (earlier the Untouchability (Offences) Act, 1955)
- Sections 123(3) and 123(3A) of the Representation of People Act, 1951 declares that soliciting of vote on the ground of religion and the promotion or attempt to promote feelings of enmity or hatred between different classes of citizens of India on the grounds of religion, race, caste, community or language is a corrupt practice. A person indulging in a corrupt practice can be disqualified for being a Member of Parliament or a State Legislature under Section 8A of the Representation of People Act, 1951.
- Prevention of Cruelty to Animal Act, 1960
- Right of Children to Free and Compulsory Education Act, 2009.
- Water (Prevention and Control of Pollution) Act, 1974, Air (Prevention and Control of Pollution) Act, 1981, The Environment (Protection) Act, 1986. It must be noted that in pursuant to various judgments of the hon'ble Supreme Court relating to environment issues and having regard to the complex issues of fact of science and technology which arise in environmental litigation and in particular in the elimination of pollution in air and water, in September 2003, the Law Commission of India, in its 186th Report, made a proposal to constitute "multi-faceted" Environmental Court with judicial and technical/scientific inputs.



(8) Drawbacks in Fundamental Duties

The chapter on Fundamental Duties is criticized on the following³¹ grounds:

(8.1). These duties are non-justiciable like directive principles of state policy. These have been termed or seen merely as moral homilies and platitudes.

(8.2). Certain fundamental duties are so vague in their meaning that they can hardly be perceived by the common people of this country where most of the people are illiterate and poor and quite unaware of their fundamental rights. In other words, these duties are not so worded as to enable a common man to understand the underlying meaning of the words.

For instance, different interpretation may be made as to what includes and what does not, in the 'valuation and preservation of rich heritage of our composite culture' or 'spirit of inquiry' or 'striving towards excellence in all spheres of individual and collective life so that the nation constantly rises to higher levels of endeavour and achievement' or 'cherishing and following the noble ideas which inspired our national struggle of freedom'.

(8.3). The chapter on 'fundamental' duties has been inserted after chapter IV that contains directive principles and not after chapter III that contains fundamental rights. Somewhere it gives an impression that, like directive principles, they should also be non-enforceable.

(8.4). Moreover, it is also not clear whether violation of fundamental duties entails any kind of punishment by the Constitution. Chapter IV-A is neither exhaustive nor does it provide the duties in concrete terms. V.D. Mahajan, in his book observed:

There is no originality in the idea of fundamental duties of the citizens. They

are original in their vagueness. There is nothing fundamental in fundamental duties. They are duties of every individual. These are the qualities, which distinguish human beings from animals.

They just lay down what is a normal human behaviour.³²

(8.5) Article 51- A has the potential to regenerate and reconstruct the nation. It has been on the statute book for the last 24 years. It commands that "it shall be the duty of every citizen of India", but it is an irony that more than 99 per cent of the citizens of India do not even know about the existence of this article in the Constitution, much less its provisions.³³

³¹Supra note 16 at 363.

³²Supra note 25.

³³Supra note 14.



(9) Role of Judiciary

The apex judiciary in India, in a number of cases, has made harmonious interpretation of part III, part IV and part IV-A of the Constitution, thus signifying the importance of fundamental duties. In *Chandra Bhavan Boarding and Lodging v. State of Mysore*³⁴, the Supreme Court of India has taken the view that “it is a fallacy to think that under our Constitution, there are only rights and no duties”. It has emphasized that Fundamental Rights are not to be read in isolation. They have to be read along with the Chapter IV and IV-A of the Constitution.³⁵

Speaking about the importance of fundamental duties, the Supreme Court in *A.I.I.M.S. Student Union v. A.I.I.M.S.*³⁶, held that fundamental duties are not enforceable by a writ of court just as fundamental rights are but it cannot be lost sight of that ‘duties’ in part IV-A under Article 51-A are prefixed by the same word ‘fundamental’ which was prefixed by the founding fathers of the Constitutions to ‘rights’ in part III. Article 51-A does not expressly cast any fundamental duty on the State, the fact remains that the duty of every citizen of India is the collective duty of the State. Fundamental duties though not enforceable by a writ of court, yet provide a valuable guide and aid to interpretation of constitutional and legal issues. Constitutional enactment of fundamental duties, if it has to have any meaning, must be used by courts as a tool to tab, even a taboo, on state action drifting away from constitutional values.

Similarly, in *State of Gujrat v. Mirzapur Moti Kureshi Kassab Jamat*³⁷ the apex court held that directive principles and fundamental duties play a significant role in interpreting the Constitution and determining the constitutional validity of any law or executive action.

In *Rural Litigation Entitlement Kendra v. State of U.P.*³⁸, the Supreme Court has issued directions to the State, having regard to Article 51-A (g). the court also reminded that preservation of the environment and keeping of ecological balance unaffected is a task which not only Governments but also every citizen must undertake. It is a social obligation and let us remind every citizen that it is his fundamental duty as enshrined in Article 51-A (g) of the Constitution.

In *Shri Sachidanand Pandey v. State of West Bengal*³⁹, the court took the view that when the court is called upon to give effect to the directive principles and the fundamental duties, it is not to shrug its shoulder and say that priorities are a matter of policy and so it is a matter for the policy making authority.

³⁴AIR 1970 SC 2042.

³⁵*Supra* note 26.

³⁶AIR 2001 SC 3262.

³⁷(2005) 8 SCC 534.

³⁸AIR 1987 SC 359.

³⁹AIR 1987 SC 1109.



Moreover, in *M.C. Mehta v. Union of India*⁴⁰ the Supreme Court, in order to implement the duty as to improvement of environment, has directed the Central Government:

- (a) to direct all educational institutions throughout India to give weekly lesson in the first ten classes, relating to the protection and improvement of the natural environment including forests, lakes, rivers and wild-life.
- (b) To get textbooks written for the said purpose and to distribute them free of cost.
- (c) To introduce short term courses for training up of teachers who teach this subject.
- (d) Not only the Central Government but also the State Governments and Local authorities to introduce cleanliness weeks when all citizens, including members of the Executive, Legislature and the Judiciary, should render free personal service to keep their local areas free from pollution of land, water and air.

In *Chandra Rajkumariv. Police Commissioner, Hyderabad*⁴¹, the Andhra Pradesh High Court has observed that holding of beauty contests by depicting in any manner the figure of a woman, form, body or any part thereof in such a way so as to have the effect of being indecent or derogatory to or denigrating women offended Articles 14, 21 and 51-A (e).

In *Bijoe Emmanuel v. State of Kerela*⁴², the Supreme court held that proper respect was shown by the students to the National Anthem by standing up in silence when the National Anthem was sung. By not joining in the singing, the court held, did not amount to committing disrespect to the National Anthem. In *S.N. Chouksey v. Union of India*⁴³, putting ban on the exhibition of the film 'KabhiKhushiKabhiGham', the Madhya Pradesh High Court held that the National Anthem, the symbol of history, unity, pride and the glory of the country, could not be sung in movies as if it was song of advertisement for a commercial purpose. The court, holding that incorporation of National Anthem in film was improper, issued appropriate directions against the dramatization of the National Anthem.

In *Union of India v. Naveen Jindal*⁴⁴, the apex court while declaring that National Flag hoisting by citizens on their premises is fundamental right *qua* freedom of speech and expression, also took help of the provisions relating to fundamental duties under part IV-A. The court also suggested making an enactment for the matter concerning the National Flag of India.⁴⁵

⁴⁰AIR 1988 SC 1115.

⁴¹AIR 1998 AP 302.

⁴²AIR 1987 SC 478.

⁴³AIR 2003 MP 233.

⁴⁴AIR 2004 SC 1559.

⁴⁵In 2007, Sachin Tendulkar reportedly cut a cake with icing in the colours and shape of the national flag in West Indies. An Indore based local leader affiliated to the BhartiyaJanshakti (BJS), Rajesh Bidkar, filed a petition against Tendulkar for cutting the cake. A complaint was filed under the Prevention of Insult to the National Honour Act, 1971 in Indore. The petition was rejected by the



State of U.P. v. Yamuna Shanker Misra & Anr.,⁴⁶ is an interesting case where the object of writing the confidential reports and making entries in the character rolls were read in the light of article 51(j) as giving an opportunity to a public servant to improve excellence. The net of this Fundamental Duty was spread so wide by the court as to spell out the eternal values of honesty, integrity, good conduct and efficiency getting improved in the performance of public duties and standard of excellence in services constantly rising to higher levels so as to be a successful tool to manage the services with officers of integrity, honesty, efficiency and devotion.

Similarly, the Supreme Court in *Vishakha and others v. State of Rajasthan*⁴⁷ found it necessary and expedient for employers in work places as well as other responsible persons or institutions to observe certain guidelines to ensure the prevention of sexual harassment of women.

Recently, on 12 April 2012, hon'ble Supreme Court in *Society For Un-Aided Private Schools of Rajasthan vs. U.O.I & Another*⁴⁸ explained the relationship between Fundamental Right to Life under article 21, Right to Education under Article 21 A, Directive Principles of State Policy under Articles 41, 45 and 46 and Fundamental Duty under Article 51-A (k). The court held that unlike other fundamental rights, the right to education places a burden not only on the State, but also on the parent/guardian of every child [Article 51-A(k)]. The Constitution directs both burdens to achieve one end: the compulsory education of children free from the barriers of cost, parental obstruction or State inaction. Thus, Articles 21A and 51-A(k) balance the relative burdens on the parents and the State. Thus, the right to education envisages a reciprocal agreement between the State and the parents and it places an affirmative burden on all stakeholders in our civil society.

(10) Recommendations of the National Commission on the Review of the Constitution (NCRC)

The Government of India appointed a committee "to operationalise the suggestions to teach Fundamental Duties to the citizens of India" in the year 1998 under the chairmanship of Justice J.S. Verma. The Committee submitted its report in October 1999. The NCRC examined the report and gave the following recommendations⁴⁹: For effectuating Fundamental Duties, the following steps should be taken:

Indore Court as the Centre's permission was required to proceed with the case, since the incident had occurred in a foreign country. Visit www.barandbench.com/brief/2/292/20-years-of-sachin-tondulkar-legal-tussles-ferrari-ca-national-flag-and-terrorists - 43k. (Accessed on 13.2.11). Recently, Mandira Bedi had to apologise for wearing a saree with the Indian flag featuring below her waist. Visit <http://www.mumbaimirror.com/index.aspx%3FPage%3Darticle%26sectname%3DMumbai%2520Talking%2520-%2520Bloggers%2520Park%26sectid%3D41%26contentid%3D20070501023609109521d34de-119k> (Accessed on 13.2.11).

⁴⁶ (1997) 4 SCC 7.

⁴⁷ AIR 1997 SC 3011.

⁴⁸ Available at <http://judis.nic.in/supremecourt/imgst.aspx?filename=39251>. (Accessed on 15. 6.14).

⁴⁹ See, "Summary of Recommendations", (paras 3.40.3 and 3.40.4) AIR 2002 Journal at 353. Also visit <http://lawmin.nic.in/ncrcw/finalreport/v1ch11.htm>. (Accessed on 14.2.11).



- (a) The first and foremost step required by the Union and State Governments is to sensitise the people and to create a general awareness of the provisions of fundamental duties amongst the citizens on the lines recommended by the Justice Verma Committee on the subject. Consideration should be given to the ways and means by which Fundamental Duties could be popularized and made effective;
- (b) Right to freedom of religion and other freedoms must be jealously guarded and rights of minorities and fellow citizens respected;
- (c) Reform of the whole process of education is an immediate but immense need, as is the need to free it from governmental or political control; it is only through education that will power to adhere to our Fundamental Duties as citizens can be inculcated;
- (d) Duty to vote at elections, actively participate in the democratic process of governance and to pay taxes should be included in article 51A; and
- (e) The other recommendations of the Justice Verma Committee on operationalisation of Fundamental Duties of Citizens should be implemented at the earliest.
- (f) The following should also be incorporated as fundamental duties in article 51A of the Constitution:

- (i) To foster a spirit of family values and responsible parenthood in the matter of education, physical and moral well-being of children.
- (ii) Duty of industrial organizations to provide education to children of their employees.

The Supreme Court in *Union of India v. R. Padmanabhan*⁵⁰, has directed the Central Government to take appropriate steps for the implementation of the recommendations of the NCRC as expeditiously as possible.⁵¹

(11) Suggestions

The recommendations made by Justice Verma Committee on Operationalisation of Fundamental Duties of Citizens deserve to be reiterated forcefully. In particular, it is suggested that⁵²:

- (11.1) there is imperative need for wider dissemination of information and generating greater awareness in regard to the Fundamental Duties of citizens and obligations of citizenship. This must assume the dimensions of a peaceful, nation-wide, mass-based movement. This can be done through:
- (a) organization of advocacy and sensitization programmes,
 - (b) display of the text of article 51A 'Fundamental Duties' prominently in government publications, diaries calendars, offices and at public places,
 - (c) radio and video spots highlighting important messages related to Fundamental Duties on AIR, Doordarshan and other channels,
 - (d) setting up an autonomous body to act like ombudsman on citizenship values and for overseeing operationalisation or effectuation of Fundamental Duties,

⁵⁰ JT 2003(7) SC 206.

⁵¹ *Supra* note 7 at 411.

⁵² *Supra* note 14.



- (e) publication of small booklets on various aspects of Fundamental Duties written in simple language and aimed at different levels of citizens through non-formal education, open schooling, adult education, and universalisation of literacy programmes
- (f) circumspection by electronic media on programmes, serials, pictures, news and advertisement affecting morality, decency and cultural values and heritage of the country,
- (g) activist role by electronic and print media in the matter of Fundamental Duties like protection of the environment,
- (h) media avoiding the glorification of acts of violence, armed robberies, and terrorist activities, and
- (i) the state machinery ensuring the effectuation of Fundamental Duties, where necessary, by prompt legislation.

(11.2) The benefits from the already existing schemes need to be optimised by monitoring work of NGOs and other institutions operating government-funded schemes focused on aspects of national integration, communal harmony, culture and values, and environment, in tune with the spirit of clauses (e), (f) and (g) of article 51A and making mid-course corrections where necessary.

(11.3) The Directive Principle of State Policy in article 48A, the Fundamental Duty in article 51-A (g) and the existing laws in the area need to be implemented and enforced in the light of the judgments of the Supreme Court.

(11.4) There is need for fundamental transformation in the direction and approach to curricular and co-curricular activities for imparting education in schools and teacher training institutions. This can be done by –

- publishing the content of Fundamental Duties through books published by the NCERT and School Textbook Bureaus,
- presenting each clause of article 51A through anecdotal talks, at morning assemblies at schools,
- organising seminars, debates, competitions on different aspects of Fundamental Duties of citizens, and
- designing an instructional design for education in Fundamental Duties that fits into the present day multi-channel environment where learning accrues from a variety of sources at home, school, community, print and electronic media.

(11.5) In order to ensure dignity of women, gender biases and sex-stereotyping must be eliminated from all textbooks both at state and national levels.

(11.6) Programmes of education for school teachers and higher and professional courses have to be so designed as to enable communication of the content of Fundamental Duties of citizens and the value of abiding by them. What is needed is a vigorous advocacy with state educational agencies, teacher education institutions and university departments for inclusion of Fundamental Duties component in curricula. All courses in Human Rights should also include Fundamental Duties.



(11.7) An independent comprehensive unit encompassing familiarisation with the Constitution of India and Fundamental Duties of citizens there under need to be incorporated in the elementary and secondary teacher education courses.

(11.8) NCC should be made compulsory in all pre-service teacher education institutions. This would promote the values of sovereignty, unity and integrity of the nation.

(11.9) The need to shift emphasis from rights to duties in all walks of life is indeed urgent. Undue emphasis on one's own rights without any awareness of one's duties is not a sign of good citizenship.

(11.10) The Fundamental Duties set out in article 51A were not intended to be legally enforced by one citizen against the other. They are like the Ten Commandments, which every citizen is expected to bear in mind and conduct himself towards the State and society accordingly. Therefore, the endeavour of the State should be not so much to give teeth to the Fundamental Duties but to spread awareness of the duties among the people. It is submitted that in the case of citizens holding public office, each and all Fundamental Duties can be enforced by suitable legislation and departmental rules of conduct. Likewise, sanctions can be provided for professional bodies such as the Bar Council of India, the Medical Council of India, the Institute of Chartered Accountants and the Institute of Engineers, etc.

(11.11) The courts in India have been taking note of the Fundamental Duties in judicial decisions. Being provisions of the Constitution, the courts will have due regard to the Fundamental Duties in interpreting the text of the Constitution. They will also be justified in moulding relief in individual cases having regard to the antecedents of the person seeking relief, particularly judged by the yardstick of Fundamental Duties.

(11.12) Some of the expressions used in the Fundamental Duties may be elaborated or explained to facilitate better understanding and attempts should be made to remove vagueness in them.

(11.13) It is suggested that a few more Fundamental Duties, namely, duty to vote in an election, duty to pay taxes and duty to resist injustice may be added in due course to article 51A in Part IVA of the Constitution.

(12) Conclusion

Emphasizing on the significance of Fundamental Duties, recently, on 23 February 2012, the apex court in the famous case of *Re-RamlilaMaidan Incident Dt 4/5.06.11 vs. Home Secretary, Union of India And Others*⁵³ held that a common thread runs through Parts III, IV and IVA of the Constitution of India. While interpreting any of these provisions, it shall always be advisable to examine the scope and impact of such

⁵³ Available at <http://judis.nic.in/supremecourt/imgst.aspx?filename=39095>. (Accessed on 15.6.14).



interpretation on all the three constitutional aspects emerging from these parts. It will create an imbalance, if undue or disproportionate emphasis is placed upon the right of a citizen without considering the significance of the duty. The true source of right is duty. When the courts are called upon to examine the reasonableness of a legislative restriction on exercise of a freedom, the fundamental duties enunciated under Article 51A are of relevant consideration. All these duties are not insignificant. They compliment the obligations of the State. Thus, all these duties are of constitutional significance.

Thus, fundamental duties are the foundations of human dignity and national character. There is a need to reconcile the claims of the individual citizen and those of the civic society and to orient the individual citizen to be conscious of his social and citizenship responsibilities and so shape the society that we all become solicitous and considerate of the inalienable rights of our fellow citizens. Therefore, awareness of our citizenship duties is as important as awareness of our rights.⁵⁴ This should be done by a systematic and intensive education of the people, that is, by publicity or by making it a part of the syllabi and curriculum of education. Homes, Universities, officers and their places of work should be made centres for imparting in the performance of their obligations.⁵⁵

If every citizen performs his duties irrespective of considerations of caste, creed, colour and language, most of the malaise of the present day polity could be contained, if not eradicated, and the society as a whole uplifted. Rich or poor, in power or out of power, obedience to citizenship duty, at all costs and risks, is the essence of civilized life.⁵⁶

It is incorrect to say that Fundamental Duties are not enforceable and are a mere reminder. They have the element of compulsion regarding compliance. So, in order to ensure a faithful and effective implementation of the Fundamental Duties, there is a need to enact suitable legislation wherever necessary to require obedience of the duties by the citizens.

⁵⁴Visit <http://lawmin.nic.in/ncrwc/finalreport/v1ch3.htm>. (Accessed on 14.2.11).

⁵⁵*Supra* note 1 at 433.

⁵⁶*Supra* note 52.



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